Montgomery County District Court

Cause No. 2024-CV-0041

Kristen Rich, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	1-26-25
Counsel for defendant:	Richard Marshall, Ashford & Lyle LLP

Defendant, appearing subject to and without waiving its right to contest any matter, files this Original Answer to Plaintiff's Original Petition and respectfully shows the Court as follows.

General Denial. Pursuant to Texas Rule of Civil Procedure 92, Defendant generally denies each and every allegation contained in Plaintiff's Original Petition and demands strict proof thereof by a preponderance of the evidence, as required by the Constitution and laws of the State of Texas.

First Affirmative Defense: Proportionate Responsibility. Plaintiff's own negligence caused or contributed to the collision and to the damages claimed. Under Chapter 33 of the Teaxs Civil Practice and Remedies Code, any recovery must be reduced by the percentage of responsibility attributable to Plaintiff, and Plaintiff may be barred from recovery if that percentage exceeds fifty percent.

Second Affirmative Defense: Sudden Emergency. The collision resulted from a sudden emergency not of Defendant's own making, requiring an instantaneous decision without time for deliberation, and Defendant acted as a reasonably prudent person would under the same circumstances.

Third Affirmative Defense: Failure to Mitigate Damages. Plaintiff failed to exercise reasonable care to mitigate the damages claimed, including by failing to follow reasonable medical advice, and any recovery must be reduced accordingly.

Defendant reserves the right to amend this Answer as discovery proceeds.